

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 26-004
Amendments to Title 8, Chapter 4 Section 8-418 of the Chickasaw Nation Code
(Certification of Election Returns)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously established rules and procedures for annual elections, and

WHEREAS, the Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8, Chapter 4 Section 8-418 of the Chickasaw Nation Code, all other sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 8-418 **CERTIFICATION OF ELECTION RETURNS.**

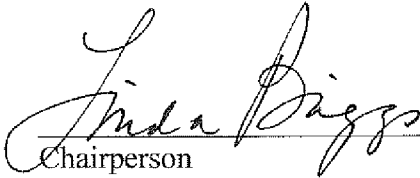
The Election Secretary/Tribal Registrar shall declare the unofficial preliminary election results on the last Tuesday ~~following the third Monday~~ of July ~~August~~ of the year of the election. The Election Secretary/Tribal Registrar shall certify results only when the recount period has expired. A copy of the certified results shall be posted at the headquarters and a copy mailed to the United States Bureau of Indian Affairs.

SECTION 8-102 **DEFINITIONS.**

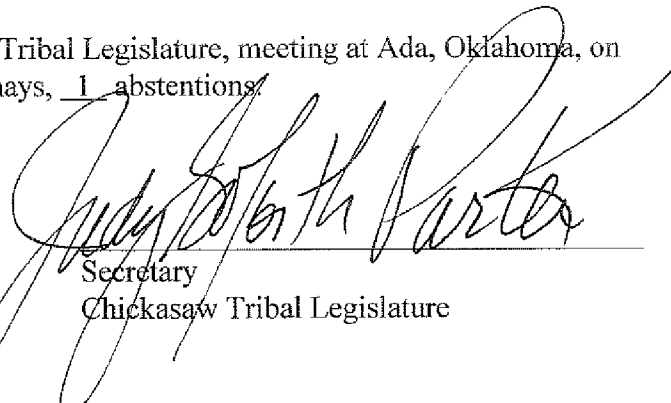
For the purpose of this Title 8, the following words shall have the meanings respectively ascribed to them in this section unless the context clearly requires otherwise:

8. “Mail Out Date” is the date that ballots shall be mailed to the Voters. It ~~shall be no later than the first Monday of August of each year;~~”

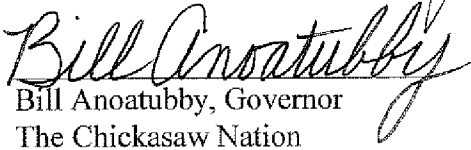
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 20, 2009, by a vote of 11 ayes, 0 nays, 1 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 23 2009

CHICKASAW TRIBAL LEGISLATURE

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(Certification of Election Returns)**

Explanation: This resolution amends two sections in Title 8 of the Chickasaw Nation Code so that the Election Secretary/Tribal Registrar shall declare the unofficial preliminary election results on the correct day and month and the mail-out date is defined correctly.

Presented By: Election Rules and Regulations Ad Hoc Committee
Steve Woods, Committee Chair